

Practice Direction 2A - Functions of the Court in the Family Procedure Rules 2010 and Practice Directions which may be Performed by a Single Lay Justice

[The Family Court Practice \(The Red Book\)](#) > [Part III Procedure Rules \(FPR and CPR\)](#) > [SI 2010/2955 Family Procedure Rules 2010](#)

Practice Direction 2A –

Functions of the Court in the Family Procedure Rules 2010 and Practice Directions which may be Performed by a Single Lay Justice

[3.17]

This Practice Direction supplements FPR Part 2, rule 2.5(1)(b)(ii) (Power to perform functions conferred on the court by these rules and practice directions)

1.1 Where the FPR or a practice direction provide for the court to perform any function, that function may be performed by a single lay justice who is authorised as specified in rules made under section 31D of the 1984 Act except that such a justice cannot perform the functions listed in:

- (a) column 2 of Table 1 in accordance with the rules listed in column 1; and
- (b) column 2 of Table 2 in accordance with the paragraph of the practice direction listed in column 1.

1.2 For the avoidance of doubt, unless a rule, practice direction or other enactment provides otherwise, a single lay justice cannot make the decision of the family court at the final hearing of an application for a substantive order. For example, a single lay justice cannot make a child arrangements order on notice, placement order, adoption or care order. However, a single lay justice can discharge the functions of the family court under the statutory provisions listed in rule 2.6 of the FPR.

Table 1

Rule	Nature of function
3.10	Determining whether a MIAM exemption has been validly claimed or was validly claimed but is no longer applicable
4.1(3)(g)	Stay the whole or part of any proceedings or judgment either generally or until a specified date or event
4.1(3)(l)	Exclude an issue from consideration
4.1(3)(m)	Dismiss or give a decision on an application after a decision on a preliminary issue
4.1(4)(a)	When the court makes an order, making that order subject to conditions
4.1(6)	Varying and revoking an order (other than directions which the court has made)
4.3(1)	Ability of the court to make orders (other than directions) of its own initiative
4.3(7)	Recording a decision to strike out a statement of case or dismiss an application (including an application for permission to appeal) and considering whether it is appropriate to make a civil restraint order where the court considers that the application is totally without merit
4.4, 4.5 and 4.6	All the powers of the family court under these rules (power to strike out statement of case, sanctions have effect unless defaulting party obtains relief from sanctions)
Part 7	The duties and powers of the family court in this Part
Part 8	The duties and powers of the family court in this Part otherwise than specified in rule 8.20(4) and except in relation to applications for a declaration of parentage under section 55A of the 1986 Act
8.20(4)	A direction that a child should be made a respondent to the application for a declaration of

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	parentage under section 55A of the Family Law Act 1986, except where the parties consent to the child being made a respondent
9.11(2)	Direction that a child be separately represented on an application
9.12(1)	The duties of the family court upon the issue of an application for financial remedies for children
9.15	The duties and powers of the family court in respect of the first appointment relating to applications for financial remedies for children
9.16(1)	Giving permission for the production of further documents between the first appointment and FDR appointment in applications for financial remedies for children
9.16(2)	Giving further directions or directing that parties attend an FDR appointment
9.17(8)	Making an appropriate consent order at the conclusion of an FDR appointment
9.17(9)	Giving directions for the future course of proceedings for financial remedies for children where it does not make an appropriate consent order.
9.17(10)	Giving directions that the parties need not personally attend an FDR appointment
9.18A(3)	Determining whether to give a direction that the procedure in Chapter 4 or Chapter 5 of Part 9 of the FPR should apply and notifying parties of that determination
9.22	All the powers of the family court under this rule (relating to proceedings by or against a person outside England and Wales for variation or revocation of orders under section 20 of the 1978 Act or paragraphs 30 to 34 of Schedule 6 to the 2004 Act)
9.26B	The powers of the family court in respect of adding parties to, or removing parties from, proceedings for a financial remedy
9.33(6)	Giving notice of the date of the first appointment or other hearing in an application for a financial remedy where the applicant or respondent is the party with pension rights
9.34(3)(b)	Giving directions that a person objecting to a consent order for pension attachment attends court of furnish written details of the objection
9.36	The duties of the family court in respect of making a pension sharing order or a pension attachment order
10.11(2)	Determining, following an arrest, whether the facts and circumstances leading to an arrest amount to breach of an occupation order or non-molestation order and deciding whether to adjourn proceedings
10.14	Adjourning hearings for consideration of the penalty to be imposed for contempt of court
10.17(1)	The taking of recognizance
Part 11	The duties and powers of the family court in this Part
12.3(2)	Where the person with parental responsibility is a child, a direction for that child be made a party, except where the parties consent to that child being made a party
12.3(3)	Direction that a child be made a party to proceedings or that a child who is a party be removed, except where the parties consent to the child being made a party or to the removal of that party
12.3(4)	Consequential directions following the addition or removal of a party except where a single justice is able to make such a direction under rule 12.3(2) and (3)
12.8(2)	Directing that an applicant effect service in section 8 private law proceedings
12.22	Drawing up a timetable for public law proceedings
12.25	The duties and powers of the family court in respect of case management hearings
12.26	The duties and powers of the family court in respect of discussions between advocates
12.26C(1)	Giving reasons for, and an explanation of the impact on the welfare of the child of, decisions to extend time limits
12.61(1) and (2)	Considering the transfer of proceedings to the court of another Contracting State, directions in relation to the manner in which parties may make representations and power to deal with question of transfer without a hearing with the consent of parties
12.64(1)	Exercising court's powers under Article 8 of the 1996 Hague Convention
12.68(1)	Staying the proceedings
12.68(3)	Giving reasons for the court's decision, making a finding of fact and stating a finding of fact where such a finding has been made
12.70(1)	Contemplating the placement of a child in another Contracting State
12.70(3)	Sending request directly to the central authority or other authority having jurisdiction in the

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	other State
12.70(4)	Sending request to Central Authority for England and Wales for onward transmission
12.70(5)	Considering the documents which should accompany the request
13.3(3)	Where the person with parental responsibility is a child, a direction for that child be made a party, except where the parties consent to that child being made a party
13.3(4)	Direction that a child be made a party to proceedings or that a child who is a party be removed, except where the parties consent to the child being made a party or to the removal of that party
13.3(5)	Consequential directions following the addition or removal of a party except where a single justice is able to make such a direction under rule 13.3(3) and (4)
13.9(7)	Variation or revocation of direction following transfer, except where a single justice would be able to make the direction in question under rule 13.9(1)
13.15(3)	Determination of the probable date of the child's birth
13.20(1)	Specifying a later date by which a parental order takes effect
14.2(4)	Giving directions regarding the removal of serial numbers
14.3(2)	Direction that a child be made a respondent, except where the parties consent to the child being made a respondent
14.3(3)(b)	Direction that a child who is a party be removed, except where the parties consent to the child being made a respondent
14.3(4)	Consequential directions following the addition or removal of a party except where a single justice is able to make such a direction under rule 14.3(2) and (3)
14.8(3)	Any of the directions listed in PD14B in proceedings for – (a) a Convention adoption order (b) a section 84 order (c) a section 88 direction (d) a section 89 order; or (e) an adoption order where section 83(1) of the 2002 Act applies (restriction on bringing children in)
14.16(8)	Making an adoption order under section 50 of the 2002 Act after personal attendance of one only of the applicants if there are special circumstances
14.16(9)	Not making a placement order unless the legal representative of the applicant attends the final hearing
14.17(4)	Determination of the probable date of the child's birth
14.25(1)	Specifying a later date by which an order takes effect
15.3(1)	Permission to a person to take steps before the protected party has a litigation friend
15.3(2)	Permission to a party to take steps (where during proceedings a person lacks capacity to continue to conduct proceedings) before the protected party has a litigation friend
15.3(3)	Making an order that a step taken before a protected party has a litigation friend has effect
15.6(1)	Making an order appointing a person as a litigation friend
15.6(6)	Court may not appoint a litigation friend unless it is satisfied that the person complies with the conditions in rule 15.4(3)
15.7	Direction that a person may not act as a litigation friend, termination of an appointment, appointment of a litigation friend in substitution for an existing one
16.2	Power of court to make a child a party to proceedings if it considers it is in the best interests of the child to do so
16.6(3)(a)	Permission to a child to conduct proceedings without a children's guardian or litigation friend
16.6(6)	Power of the court to grant an application under paragraph (3)(a) or (5) if the court considers that the child has sufficient understanding to conduct the proceedings
16.6(7)	Power of the court to require the litigation friend or children's guardian to take such part in proceedings (referred to in paragraph (6)) as the court directs
16.6(8)	Power of the court to revoke permission granted under paragraph (3) in specified circumstances
16.6(10)	Power of the court, in specified circumstances, to appoint a person to be the child's litigation friend or children's guardian

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16.8(2)	Permission to a person to take steps before the child has a litigation friend
16.8(3)	Making an order that a step taken before the child has a litigation friend has effect
16.11(1)	Making an order appointing a person as a litigation friend
16.12	Direction that a person may not act as a litigation friend, termination of an appointment, appointment of a litigation friend in substitution for an existing one
16.23(2)	Permission to a person to take steps before the child has a children's guardian
18.3(1)(c)	Direction that a child be a respondent to an application under Part 18
18.9(1)(a)	Power of court to deal with a Part 18 application without a hearing
18.12	Power of the court to proceed in absence of a party, except where a single justice has the power to make the relevant order applied for
19.8(2)	The court's power to require or permit a party to give oral evidence at the hearing
Part 20	The duties and powers of the family court in this Part
21.3	Power of court relating to withholding inspection or disclosure of a document
22.1(2) to (4)	Power to exclude evidence that would otherwise be admissible, power to permit a party to adduce evidence, or to seek to rely on a document, in respect of which that party has failed to comply with requirements of Part 22 and power to limit cross examination
22.6	Court's powers relating to use at final hearing of witness statements which have been served
22.12	Power of court to require evidence by affidavit instead of or in addition to a witness statement
22.15(4)	Permission for a party to amend or withdraw any admission made by that party on such terms as the court thinks just
22.20(3)(a)	Permission for a witness statement in proceedings in the family court under Part 9 to be used for a purpose other than the proceedings in which it is served
25.4	Giving permission to put expert evidence before the family court
25.5(1)	Having regard to any failure to comply with rule 25.6 or any direction of the family court about expert evidence when deciding whether to give permission mentioned in section 13(1), (3) or (5) of the 2014 Act or to give a direction under section 38(6) of the 1989 Act
25.6(1)	Giving directions in respect of permission mentioned in section 13(1), (3) or (5) of the 2014 Act or rule 25.4(2)
27.5	Granting applications to set aside judgments or orders following failure to attend
27.10(1)(b)	Direction that proceedings to which the Rules apply will not be held in private, except that a single justice may give such a direction in relation to a hearing which that single justice is conducting
27.11(2)(g)	Power of the court to permit any other person to be present during any hearing, except that a single justice may give such permission in relation to a hearing which that single justice is conducting
27.11(3)	Direction that persons within rule 27.11(2)(f) shall not attend the proceedings or any part of them
28.3(6)	Making an order requiring one party to pay the costs of another party
29.8(1)	Court's opinion that it would be prevented by section 8 or 9 of the Child Support Act 1991 from making an order
29.8(2)	Court's consideration of the matter without a hearing
29.8(10)	Power of the court to determine that it would be prevented by sections 8 or 9 of the 1991 Act from making an order, and to dismiss the application
29.8(11)	The court must give written reasons for its decision
29.9(2)	Direction that the document will be treated as if it contained the application and directions as the court considers appropriate as to the subsequent conduct of the proceedings
29.12(1)	Permission for inspection of a document, except where no party to the proceedings to which that document relates objects
29.13(1)	Direction for a court officer not to serve a copy of an order (other than directions that the single justice has made) to every party affected by it
29.15	Specifying alternative date for an order to take effect, except an order which the single justice has made
29.16	Correcting an accidental slip or omission in an order, except where that order was made by a single justice

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29.17	Functions in relation to the transfer of proceedings to another court
29.19(3)	Giving directions in respect of requests for reconsideration of decisions on the allocation of proceedings
29.91(5)	Reconsidering decisions in respect of allocation of proceedings
Part 30	Any power of the magistrates' court (where it is the lower court) to grant or refuse permission to appeal, except where a single justice has the power to make the order which is subject to the appeal
31.9	Power for court to stay the proceedings
32.22B	Powers in relation to methods of payment for means of payment orders
32.22C(2)	Notifying interested parties of the outcome of an application for a variation of a method of payment
32.22C(3)	Recording variations of methods of payment on the order to which the variation relates
Part 33	The duties and powers of the family court in this Part
Part 34	The duties and powers of the family court in this Part in so far as they relate to enforcement
Part 37	The duties and powers of the family court in this Part
Part 38	Recognition and Enforcement of Protection Measures
Part 39	The duties and powers of the family court in this Part
Part 40	The duties and powers of the family court in this Part

Table 2

PD3A – Family Mediation Information and Assessment Meetings (MIAMS) – Paragraphs 7, 36 and 37	- Under paragraph 7 if an applicant claims a MIAM exemption, the family court will issue proceedings but will inquire into the exemption claimed. This will be on allocation in private law proceedings relating to children. In financial remedy proceedings this will be at allocation, if appropriate, or at the first hearing. The court will review any supporting evidence submitted. If a MIAM exemption was not validly claimed, or was validly claimed but is no longer applicable, the court may direct the applicant or the parties to attend a MIAM. - Under paragraph 36 the family court may adjourn proceedings where evidence is not available or may give directions about how and when evidence is to be filed. - Under paragraph 37, if the family court determines that the MIAM exemption was not validly claimed, or was validly claimed but is no longer applicable, the court may direct the applicant, or the parties, to attend a MIAM and may adjourn proceedings pending MIAM attendance.
PD4B – Civil Restraint Orders	Generally, the family court's functions in respect of applications for civil restraint orders.
PD7A – Procedure for Applications in Matrimonial and Civil Partnership Proceedings – Paragraphs 3.4, 5.3 and 7.1	- Under paragraph 3.4 the family court may give permission to file an application without the required documentation. - Under paragraph 5.3 the family court may direct a period within which a party must file with the court an amended application for a matrimonial or civil partnership order or an amended answer. - Under paragraph 7.1 the family court may make an order for the disclosure of documents under rule 7.17(2)(c) where an application for a matrimonial or civil partnership order is not being dealt with as a standard case.
PD7B – Medical Examinations on Applications for Annulment of a Marriage – Paragraph 1.1	Under paragraph 1.1 where a defended application is made for the annulment of a marriage based on the incapacity of one of the parties to consummate, the family court should not appoint a medical examiner unless it appears necessary to do so for the proper disposal of the case.
PD7C – Polygamous Marriages – paragraph 2.4	Under paragraph 2.4 the family court may give an additional spouse notice of any of the proceedings to which this practice direction applies and make an additional spouse a party to such proceedings.

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PD8A – Where to Start Certain Proceedings – Paragraph 1.2	Under paragraph 1.2 the family court may make a direction in respect of whether a matter will be heard in the same location of the family court as existing (or proposed) proceedings.
PD12J – Child Arrangements and Contact Order: Domestic Abuse and Harm	Generally, the family court's functions in respect of applications in respect of child arrangements orders, about where a child should live or about contact between a child and a parent or other family member except the functions in the first three bullets points in paragraph 6 and paragraphs 8, 15 and 21.
Podium – Family Assistance Orders: Consultation – paragraphs 1.2, 1.3 and 1.5	- Under paragraph 1.2 the family court must have obtained the opinion of the appropriate officer about whether it would be in the best interests of the child in question for a family assistance order to be made and, if so, how the family assistance order could operate and for what period - Under paragraph 1.3 the family court decides on the category of officer required to be made available under the family assistance order - Under paragraph 1.5 the family court must give to the person it proposes to name in the order an opportunity to comment
PD14B – The First Directions Hearing – adoptions with a Foreign Element – Paragraph 2	Under paragraph 2 the court's consideration of: (a) whether the requirements of the Adoption and Children Act 2002 and the Adoptions with a Foreign Element Regulations 2005 (IS 2005/392) appear to have been complied with and, if not, consider whether or not it is appropriate to transfer the case to the High Court; (b) whether all relevant documents are translated into English and, if not, fix a timetable for translating any outstanding documents; (c) whether the applicant needs to file an affidavit setting out the full details of the circumstances in which the child was brought to the United Kingdom, of the attitude of the parents to the application and confirming compliance with the requirements of The Adoptions with a Foreign Element Regulations 2005; and (d) give directions about: (i) the production of the child's passport and visa; (ii) the need for the Official Solicitor and a representative of the Home office to attend future hearings; and (iii) personal service on the parents (via the Central Authority in the case of an application for a Convention Adoption Order) including information about the role of the Official Solicitor and availability of legal aid to be represented within the proceedings; and (e) consider fixing a further directions no later than 6 weeks after the date of the first directions appointment and timetable a date by which the Official Solicitor should file an interim report in advance of that further appointment.
PD15A – Protected Parties – Paragraph 4.2(b)	Under paragraph 4.2(b) court directions on service on protected party.
PD16A – Representation of Children – Paragraph 6.8	Under paragraph 6.8 the children's guardian must – (a) unless the court otherwise directs, file a written report advising on the interests of the child in accordance with the timetable set by the court; and (b) in proceedings to which Part 14 applies, where practicable, notify any person the joining of whom as a party to those proceedings would be likely, in the opinion of the children's guardian, to safeguard the interests of the child, of the court's power to join that person as a party under rule 14.3 and must inform the court (i) of any notification; (ii) of anyone whom the child's guardian attempted to notify under this paragraph but was unable to contact; and (iii) of anyone whom the children's guardian believes may wish to be joined to the proceedings

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	Under paragraph 7.5 the court may, at the same time as deciding whether to join the child as a party, consider whether the proceedings should be transferred to another court taking into account the provisions of Part 3 of the Allocation and Transfer of Proceedings Order 2008.
PD18A – Other Applications in Proceedings Paragraphs 4.1 to 4.4(a)	Under paragraph 4.1 on receipt of an application notice containing a request for a hearing, unless the court considers that the application is suitable for consideration without a hearing, the court officer will, if serving a copy of the application notice, notify the applicant of the time and date fixed for the hearing of the application. Under paragraph 4.2 on receipt of an application notice containing a request that the application be dealt with without a hearing, the court will decide whether the application is suitable for consideration without a hearing. Under paragraph 4.3 where the court considers that the application is suitable for consideration without a hearing but is not satisfied that it has sufficient material to decide the application immediately it may give directions for the filing of evidence and will inform the applicant and the respondent(s) of its decision. Under paragraph 4.4(a) where the court does not consider that the application is suitable for consideration without a hearing it may give directions as to the filing of evidence.
PD20A – Interim Remedies	Generally, the family court's functions in respect of applications for interim remedies.
PD22A – Written Evidence – Paragraphs 1.6, 14.1 and 14.2	Under paragraph 1.6 the court may give a direction under rule 22.12 that evidence shall be given by affidavit instead of or in addition to a witness statement on its own initiative; or after any party has applied to the court for such a direction. Under paragraph 14.1 where an affidavit, a witness statement or an exhibit to either an affidavit or a witness statement does not comply with Part 22 or PD22A in relation to its form, the court may refuse to admit it as evidence and may refuse to allow the costs arising from its preparation. Under paragraph 14.2 permission to file a defective affidavit or witness statement or to use a defective exhibit may be obtained from the court where the case is proceeding.
PD27A – Family Proceedings: Court Bundles (Universal Practice to be Applied in all Courts other than the Family Proceedings Court)	• Generally, the family court's functions in respect of court bundles.
PD27B – Attendance of Media Representatives at Hearings in Family Proceedings	• Generally the family court's discretion to exclude media representatives from attending hearings or part of hearings (other than where a Single Lay Justice is conducting the hearing).
PD37A – Applications and Proceedings in relation to contempt of court	• Generally, the family court's functions in respect of applications and proceedings in relation to contempt of court.
<i>PD38A – Recognition and Enforcement of Protection Measures</i>	
PD40A – Charging Orders, Stop Orders and Stop Notices	• Generally, the family court's functions in respect of applications and proceedings for charging orders, stop orders and stop notices.

Forms

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Practice Direction 2B - References in the Rules to Actions done by the Court or by a Court Officer

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Practice Direction 2B –

References in the Rules to Actions done by the Court or by a Court Officer

[3.18]

This Practice Direction supplements FPR Part 2

In the past, where the Rules have provided for an action to be done by the court or by a court officer, they have often provided that the court or court officer 'will' do that action.

From and including 11 January 2015, and including amendments coming into force on that date, where an amendment is made to these Rules to insert a new provision or alter an existing one, and that amendment provides for an action to be done by the court, or by a court officer, the Rules will generally provide that the court or court officer 'must' do the action, rather than 'will'. This is to make it clearer where an obligation lies with the court or court officer to do something. Occasionally in the future, it may still be appropriate to use the word 'will', for example in a statement of future intent, and on those occasions, 'will' will be used.

This does not affect the meaning of 'will' and 'must' in the Rules before 11 January 2015.